

Privacy Policy & Terms of Service - Developer / Designer Handoff

For a boutique project controls, planning and claims support consultancy website. This pack provides layout guidance, copy-ready policy text, and implementation notes.

Important: This is a lawyer-ready draft and developer handoff, not legal advice. Have a qualified NZ/Australian lawyer review the final pages before launch, especially once the entity, governing law and client engagement model are confirmed.

Page	URL	Primary purpose
Privacy Policy	/privacy-policy	Explain collection, use, disclosure, storage, rights and complaints.
Terms of Service	/terms-of-service	Govern website use only; separate from client engagement terms.

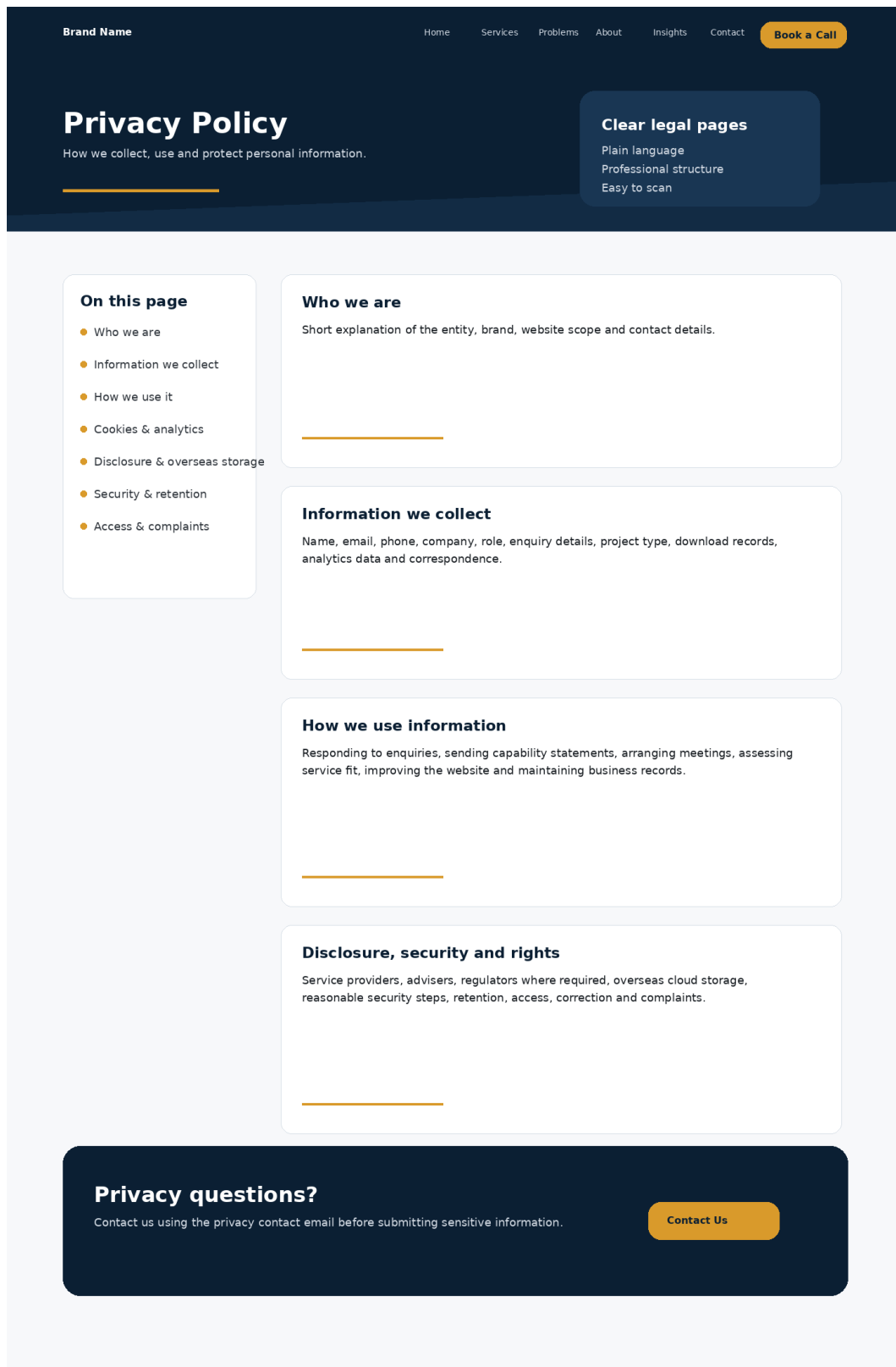
Design rules for both legal pages

- Keep the same header, footer, colour palette and typography as the main website.
- Use a clean legal-content layout: hero banner, short intro, side table of contents on desktop, stacked cards on mobile.
- Do not hide key clauses in tiny grey text. Use readable 16-18px body text on the website.
- Keep the content plain-English and scannable. Use anchor links for long sections.
- Add "Last updated" date near the page title and update it whenever changes are made.
- Footer links should show as: Privacy Policy | Terms of Service, with proper spacing.

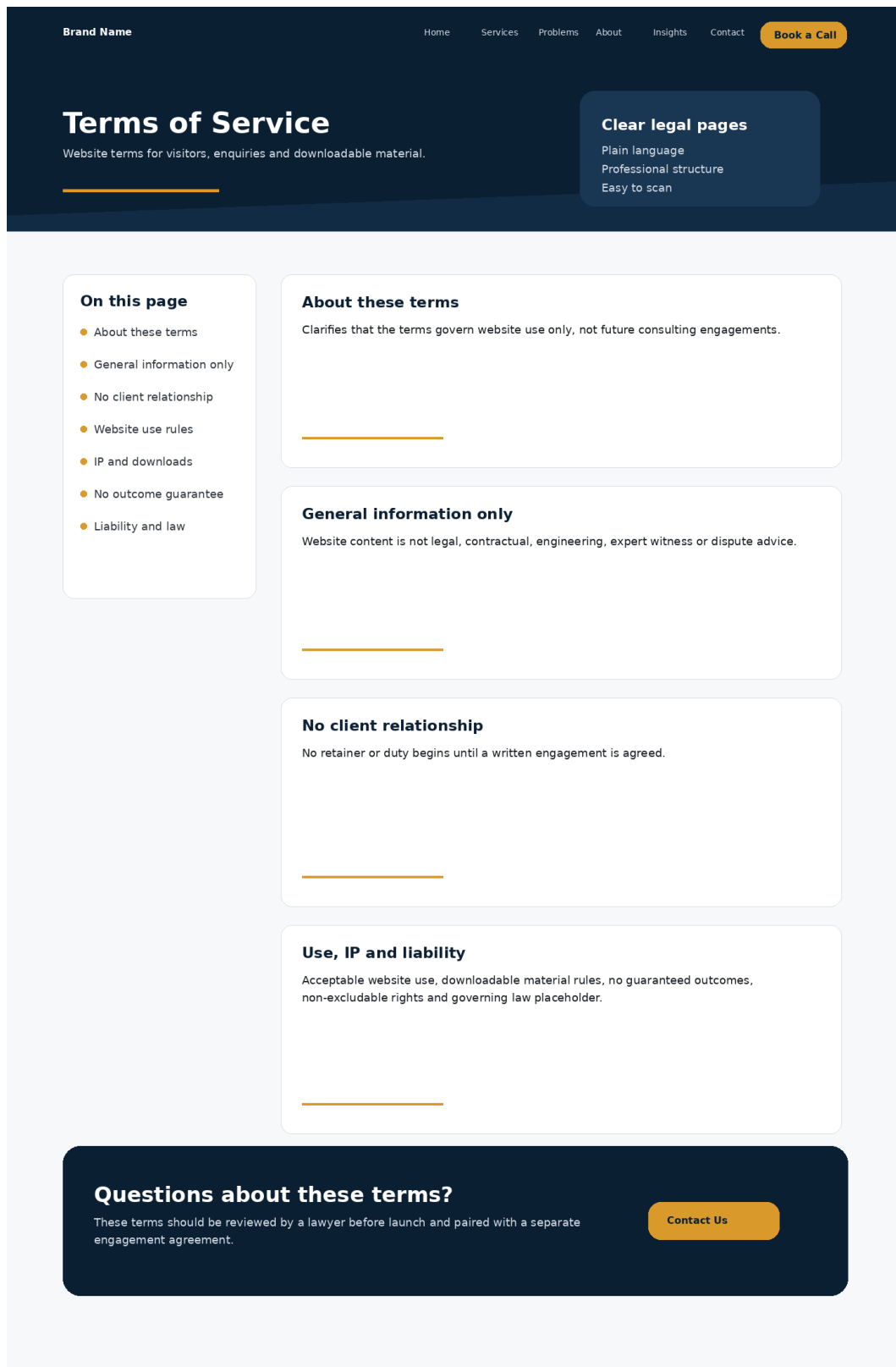
Recommended visual structure

Desktop: header/nav, navy hero section, two-column body with a left table of contents and right content column, final CTA/contact block, footer. Mobile: full-width hero, horizontal/stacked contents list, single-column content cards.

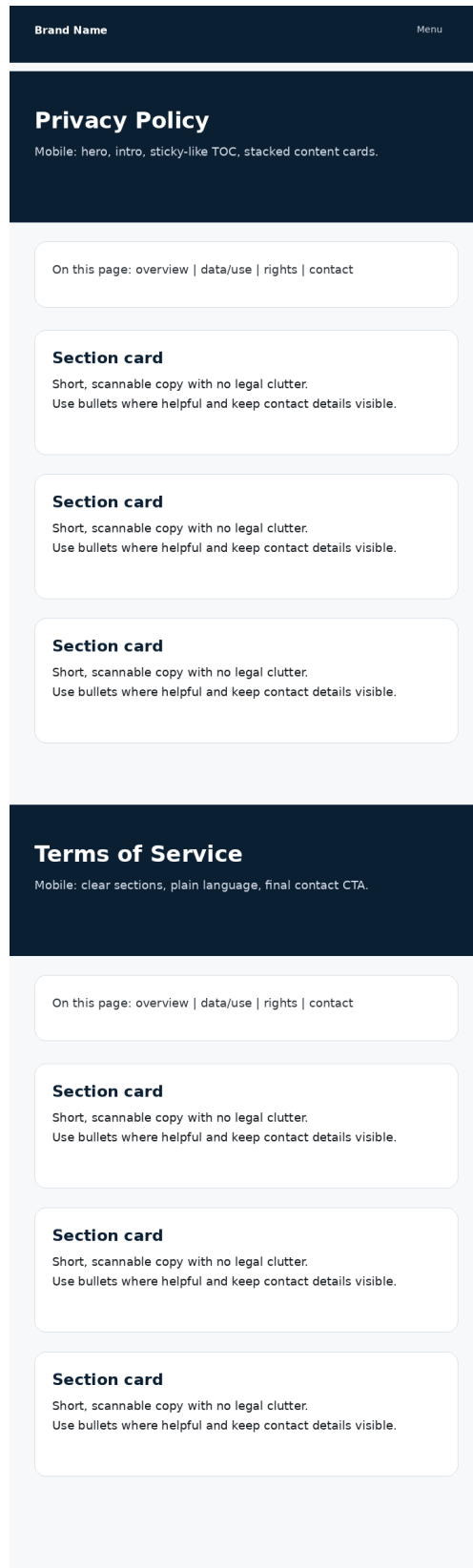
Privacy Policy desktop mockup



Terms of Service desktop mockup



Mobile layout mockup



Legal research and build assumptions

Research notes for legal-page structure:

- The OAIC explains that the Australian Privacy Act 1988 generally regulates Australian Government agencies and organisations with annual turnover above AUD 3 million, plus some other organisations. Most small businesses under that threshold may not be covered, but best-practice privacy transparency is still recommended.
- The OAIC Notifiable Data Breaches scheme applies to organisations covered by the Australian Privacy Act when a data breach is likely to result in serious harm.
- The NZ Privacy Commissioner states that businesses and organisations operating in New Zealand and collecting personal information need to follow the Privacy Act 2020.
- The NZ Privacy Act principles govern collection, storage, use and sharing of personal information, and individuals should be told when information is being collected and how it will be used.
- The ACCC notes that unfair contract term laws apply to standard form contracts with consumers and small businesses; from November 2023, businesses can face penalties for proposing, using or relying on unfair contract terms. Website terms and client engagement terms should avoid overreaching clauses.

Implementation note: the Privacy Policy and Terms of Service should be reviewed after the company name, legal entity, country/state of registration, insurance position, service scope and client engagement terms are confirmed.

Copy-ready page: Privacy Policy

Privacy Policy

Last updated: [Insert date]

1. Who we are

This Privacy Policy explains how [Company Name], trading as [Brand Name], collects, uses, stores and discloses personal information through this website and related enquiries.

For this policy, "we", "us" and "our" means [Company Name] and [Brand Name]. "You" means website visitors, prospective clients, suppliers, business contacts and any person who contacts us.

2. Scope of this policy

This policy applies to personal information collected through our website, contact forms, capability statement downloads, email, phone, LinkedIn or other business communications.

This policy does not replace any privacy terms that may be included in a signed client engagement, proposal, subcontract or consultancy agreement.

3. Personal information we may collect

We may collect the following types of personal information:

- name, email address, phone number, company, job title and business contact details;
- information you submit through website forms, email or other communications;
- project-related information you choose to provide, such as project type, location, services required, programme or claims support needs;
- download or enquiry records, such as when you request a capability statement;
- meeting notes, correspondence records and relationship management information;
- website and technical information, such as IP address, browser type, device information, pages visited, referral source and approximate location; and
- any other information you voluntarily provide to us.

We do not intentionally collect sensitive personal information through the website. Please do not submit sensitive personal information unless we specifically request it and explain why it is needed.

4. How we collect personal information

We may collect personal information when you:

- submit a contact form or enquiry;
- request or download a capability statement or other document;
- email, call or message us;
- connect with us on LinkedIn or another professional platform;
- engage with our website, cookies or analytics tools; or

- provide information during business development discussions or meetings.

Where practical, we collect personal information directly from you. Sometimes we may collect business contact details from publicly available professional sources, referrals or introductions.

5. Why we collect and use personal information

We may use personal information to:

- respond to enquiries and provide requested information;
- assess whether we can assist with a potential project or service request;
- send a capability statement or arrange an introductory meeting;
- communicate with prospective clients, contractors, partners and suppliers;
- provide project controls, planning, claims support or commercial services where formally engaged;
- conduct conflict checks, risk checks or internal business assessments;
- improve our website, content, services and business development activities;
- maintain records for administrative, legal and compliance purposes;
- protect the security and integrity of our website and systems; and
- send business updates or marketing communications where permitted by law or with your consent.

You can unsubscribe from marketing communications at any time.

6. Cookies and website analytics

Our website may use cookies, analytics tools and similar technologies to understand website traffic, improve user experience and measure performance. These tools may collect technical information such as device type, pages visited, time on page and referral source.

You can control cookies through your browser settings. Some website features may not work properly if cookies are disabled.

7. When we may disclose personal information

We may disclose personal information to:

- our founders, employees, contractors or advisers who need the information for business purposes;
- website hosting, email, CRM, analytics, document storage, IT support or other service providers;
- professional advisers, such as accountants, insurers, lawyers or consultants;
- regulators, courts, dispute resolution bodies or law enforcement where required by law;
- a prospective purchaser, successor or restructure participant if our business is sold, merged or reorganised; and
- any other person where you have consented or where disclosure is permitted or required by law.

We do not sell personal information.

8. Overseas storage and disclosure

Because our business may operate across New Zealand and Australia and use cloud-based service providers, personal information may be stored, processed or accessed in New Zealand, Australia or other countries where our service providers operate.

Where required by applicable privacy law, we will take reasonable steps to ensure appropriate protection applies to overseas disclosure or processing of personal information.

9. Security of personal information

We take reasonable steps to protect personal information from misuse, interference, loss, unauthorised access, modification and disclosure. These steps may include access controls, password protection, secure cloud services, limited access permissions and business record management controls.

No method of internet transmission or electronic storage is completely secure. If you believe your personal information has been compromised, please contact us immediately.

10. Retention

We keep personal information only for as long as reasonably needed for the purposes described in this policy, including business, legal, insurance, accounting, compliance, dispute management or record-keeping purposes.

If information is no longer needed, we will take reasonable steps to delete, de-identify or securely archive it.

11. Access and correction

You may request access to, or correction of, personal information we hold about you. We may need to verify your identity before responding.

We will respond within a reasonable time and in accordance with applicable privacy law. In some circumstances, we may refuse access or correction where permitted by law, and we will explain the reason where required.

12. Complaints and questions

If you have a privacy question, concern or complaint, please contact us first using the details below. We will take your concern seriously and respond within a reasonable time.

Contact: [privacy@yourdomain.com]

If you are not satisfied with our response, you may contact the relevant privacy regulator, such as the Office of the Australian Information Commissioner in Australia or the Office of the Privacy Commissioner in New Zealand.

13. Changes to this Privacy Policy

We may update this Privacy Policy from time to time. The updated version will be posted on this website with a new "last updated" date.

Copy-ready page: Terms of Service

Terms of Service

Last updated: [Insert date]

1. About these terms

These Terms of Service govern your use of this website operated by [Company Name], trading as [Brand Name].

By accessing or using this website, you agree to these terms. If you do not agree, please do not use the website.

These terms apply to website use only. They do not govern any professional services engagement unless expressly incorporated into a signed proposal, engagement letter, consultancy agreement or other written contract.

2. Website information is general only

The information on this website is provided for general information and business development purposes only. It is not legal advice, contractual advice, engineering certification, expert evidence, dispute advice or a substitute for advice based on your specific project, contract and circumstances.

You should obtain appropriate professional advice before relying on any information for legal, contractual, commercial, claims, dispute or project decision-making purposes.

3. No client relationship until formally engaged

Contacting us through the website, downloading a capability statement, sending project information or arranging an introductory discussion does not create a client relationship, retainer, duty of care or obligation to provide services.

A client relationship only begins when we have accepted an engagement in writing and the relevant scope, fees, responsibilities and terms have been agreed.

4. Services described on the website

The website may describe services such as project controls, planning, programme support, delay analysis support, EOT support, reporting, commercial support and contract administration support.

Service descriptions are indicative only. Availability, scope, deliverables, exclusions, assumptions, reliance and liability will be confirmed in a written engagement document before any work begins.

Unless expressly agreed in writing, we do not provide legal advice, act as solicitors, provide adjudication or litigation representation, or provide independent expert witness evidence.

5. Your use of the website

You agree not to:

- use the website for unlawful, misleading, fraudulent or harmful purposes;
- interfere with the operation, security or availability of the website;
- attempt to gain unauthorised access to any system, account or data;
- upload viruses, malicious code or harmful material;
- copy, scrape or reproduce website content except as permitted by law; or
- submit information that you are not authorised to provide.

6. Information you provide to us

You are responsible for ensuring that information you provide through the website is accurate, lawful and not confidential to another person or organisation unless you are authorised to disclose it.

Please do not send us confidential project documents, privileged material, commercially sensitive information or personal information about others unless we have agreed a secure process for receiving it.

We may choose not to respond to enquiries that are incomplete, inappropriate, outside our capability, conflicted or otherwise unsuitable.

7. Capability statements and downloadable material

Capability statements, brochures, guides and other downloadable material are provided for general information only. They do not constitute an offer, proposal, warranty, professional advice or binding commitment to provide services.

You may share our capability statement within your organisation for the purpose of considering our services. You may not modify, reproduce, publish, sell or commercially exploit our material without written permission.

8. Intellectual property

Unless otherwise stated, all website content, including text, graphics, layouts, documents, service descriptions, images, icons, branding and downloadable materials, is owned by us or licensed to us.

You may view and download website content for personal or internal business evaluation purposes. You must not copy, reproduce, adapt, distribute or use our content for commercial purposes without our written consent.

9. Third-party links and tools

The website may include links to third-party websites, platforms, documents, booking tools or other resources. We are not responsible for the content, security, accuracy, privacy practices or availability of third-party websites or services.

Your use of third-party services may be subject to their own terms and privacy policies.

10. No guarantee of outcomes

Project controls, planning, claims support and commercial support depend on project records, contract terms, programme quality, factual circumstances, stakeholder conduct and many other factors.

We do not guarantee that use of our website or any future services will result in approval of claims, EOTs, variations, payment recovery, avoidance of liquidated damages, dispute success or any particular commercial outcome.

11. Australian and New Zealand consumer and business laws

Nothing in these terms excludes, restricts or modifies any guarantee, right, remedy or liability that cannot lawfully be excluded under applicable Australian or New Zealand law.

To the maximum extent permitted by law, and subject to any non-excludable rights, we exclude liability for loss arising from your use of, or reliance on, website information.

12. Limitation of liability for website use

To the maximum extent permitted by law, we are not liable for any direct, indirect, incidental, consequential or special loss, loss of profit, loss of revenue, loss of opportunity, project delay, commercial loss, data loss or reputational loss arising from or connected with your use of this website or reliance on website content.

This clause does not limit any liability that cannot be limited by law.

13. Indemnity

You agree to indemnify us against reasonable losses, costs, claims or expenses arising from your unlawful use of the website, breach of these terms, infringement of our intellectual property, or submission of information you were not authorised to provide.

14. Privacy

Our collection and use of personal information is explained in our Privacy Policy. By using the website or submitting information, you acknowledge that we may handle personal information in accordance with that policy.

15. Changes to the website and these terms

We may update, suspend or remove website content at any time without notice. We may also update these terms from time to time. The updated version will be posted on the website with a new "last updated" date.

16. Governing law

These terms are governed by the laws of [New Zealand / insert relevant Australian state or territory].

You and we submit to the non-exclusive jurisdiction of the courts of [New Zealand / insert relevant Australian state or territory].

This governing law clause should be confirmed by a qualified lawyer before launch, especially if the business will be registered in Australia or contract mainly with Australian clients.

17. Contact

Questions about these terms can be sent to:

[privacy@yourdomain.com]

Developer checklist before launch

- ✓ Replace placeholders: company name, trading name, email, governing law, jurisdiction, last updated date.
- ✓ Add links in footer: /privacy-policy and /terms-of-service.
- ✓ Make headings anchor-linkable for the table of contents.
- ✓ Confirm contact form links to Privacy Policy before submission.
- ✓ If analytics/cookies are used, ensure the Privacy Policy lists them accurately.
- ✓ If capability statement downloads collect emails, state what the email will be used for.
- ✓ Do not make hidden or overly broad disclaimers; keep wording readable and fair.
- ✓ Have legal counsel review before launch and again before signing first client contract.